

26CHCV02069 26CHCV02069

County: los-angeles

Division: Civil Law and Motion

Department: F49

Hearing date: 2026-08-19

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF49%2C08%2F19%2F2026

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Case Number: 26CHCV02069 Hearing Date: August 19, 2026 Dept: F49

Dept. F49

Date: 8/19/26

Case Name: Main Street Newhall, LLC vs. John W. Wright;
and Does 1-10

Case No. 26CHCV02069

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

AUGUST 19, 2026

DEMURRER

Los Angeles Superior

Court Case No. 26CHCV02069

Motion filed: 7/8/26

MOVING PARTY: Defendant John W. Wright

RESPONDING PARTY: Plaintiff Main Street Newhall, LLC

NOTICE: OK

RELIEF REQUESTED: An order from this Court sustaining Defendant John W. Wright's Demurrer to Plaintiff's Complaint.

TENTATIVE RULING: The Demurrer is OVERRULED.

BACKGROUND

This unlawful detainer action arises from the alleged failure of Defendant John W. Wright ("Defendant") to pay rent pursuant to a commercial rental agreement between the parties. On May 22, 2026, Plaintiff Main Street Newhall, LLC ("Plaintiff") filed the Complaint against Defendant and Does 1-10, seeking past-due rent, attorney fees, and forfeiture of the agreement.

On June 9, 2026, Defendant filed the instant Demurrer to Plaintiff's Complaint (the "Demurrer").

On July 22, 2026, Plaintiff filed an Opposition.

On August 4, 2026, Defendant filed a Reply.

ANALYSIS

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer ... to the pleading on any one or more of the following grounds: ... (e) The pleading does not state facts sufficient to constitute a cause of action. (f) The pleading is uncertain." (Code Civ. Proc. § 430.10.) As used in section 430.10, "uncertain" includes ambiguous and unintelligible pleading. (§ 430.10, subd. (f).)

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 745.) When considering demurrers, courts "give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (Blank v. Kirwan (2006) 39 Cal.3d 311, 318.) In a demurrer proceeding, the court treats all material facts properly pleaded as true, but

does not assume “contentions, deductions or conclusions of fact or law.” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525, internal quotations omitted.) “Questions of fact may be resolved on demurrer only when there is only one legitimate inference to be drawn from the allegations of the complaint. [Citation.]” (TracFone Wireless, Inc. v. County of Los Angeles (2008) 163 Cal.App.4th 1359, 1368.)

“It is not the ordinary function of a demurrer to test the truth of the plaintiff’s allegations or the accuracy with which he describes the defendant’s conduct. A demurrer tests only the legal sufficiency of the pleading.” [Citation.] (Berg v. Berg Enterprises, LLC v. Boyle (2009) 178 Cal.App.4th 1020, 1034.) The facts alleged in a complaint are deemed true “however improbable they may be.” (Id., at p.1034, internal quotations omitted.)

A.

Grounds for Demurrer

Pursuant to Code of Civil Procedure

section 1161, a tenant who continues in possession of property without the permission of the landlord, after defaulting on payment of rent and after the landlord has served three days’ notice, is guilty of unlawful detainer.

An unlawful detainer complaint must:

(1) be verified, (2) set forth the facts on which the plaintiff seeks to recover, (3) describe the premises with reasonable certainty, (4) state the amount of rent in default, and (5) specifically state “the method used to serve the defendant with the notice or notices of termination upon which the complaint is based.” (Code Civ. Proc., § 1166, subd. (a).)

Defendant contends that the

Complaint fails to state a cause of action for unlawful detainer because it does not establish Plaintiff’s ownership or right to possession of the leased premises and because the three-day notice served by Plaintiff overstates the amount of rent owed and includes charges other than rent. (Dem., at pp. 3-4.)

Defendant also contends that the Complaint is fatally uncertain because it alleges that the leased premises is 24254 Main Street, Newhall, but the lease agreement and three-day notice indicate that the leased premises is located at 24247 Railroad Avenue. (Id., at p. 3.)

(1)

The Complaint Establishes Main Street
Newhall's Right to Possession.

First, Defendant contends that the Complaint fails because Plaintiff has not established ownership or right to possession of the premises. (Dem., at p. 3.) Defendant reasons that the Complaint alleges that Plaintiff owns the leased premises, but the lease documents identify the owner as the Stewart Family Trust and the Stewart Family Partners, contradicting Plaintiff's claim of ownership. (Ibid.)

In Opposition, Plaintiff asserts that only the right to possession needs to be established, and that the operative agreement between the parties does so. (Opp'n, at p. 6.) Plaintiff notes that the Lease Transfer Agreement executed February 1, 2022 identifies the landlord as Main Street, LLC and Main Street Newhall, LLC. (Ibid.) Plaintiff contends that the Lease Transfer Agreement transferred to Defendant all rights under the prior lease with the Stewart Family Trust and Stewart Family Partners and renewed the lease term for ten years. (Ibid.) Plaintiff contends that the extension of the lease with Plaintiff as landlord establishes its right to possession.

The foundation of an unlawful detainer action is the existence of a landlord-tenant relationship. (Code Civ. Proc., §§ 1161 et seq.) The statutes governing unlawful detainer actions do not require the landlord to establish title to the leased property, and Defendant provides no authority for imposing such a requirement. (Ibid.; see also *Coyne v. De Leo* (2018) 26 Cal.App.5th 801, 818 ["In the usual unlawful detainer case, the tenant is estopped from challenging his or her landlord's title because (1) the tenant previously agreed to pay the landlord rent; and (2) if some third party has title to the property, the tenant nonetheless has no right to possession."].)

Here, the Lease Transfer Agreement identifies the parties to the agreement as Plaintiff, Defendant, and Gary Gevojanyan ("Gevojanyan"). (Compl., Exh. 1.) The agreement's recitals indicate that Defendant is purchasing Gevojanyan's business and that the purchase is conditioned on Defendant's agreement to assume Gevojanyan's obligations under the underlying lease, as modified by the agreement. (Ibid.) The agreement identifies Plaintiff as the landlord, and requires Defendant to pay

to “Main Street, LLC” rent in the amount of \$9,500 per month, with fixed periodic increases. (Ibid.)

The Court finds that the Lease Transfer Agreement adequately establishes a landlord-tenant relationship between Plaintiff and Defendant, thereby alleging a basis for Plaintiff's right to possession in the event of Defendant's default.

(2)

The Three-Day Notice States an Amount Due that Consists of Permissible Charges.

Defendant also argues that the three-day notice attached to the Complaint is defective because the amount demanded aggregates rent with other charges, including insurance premiums, late charges, and a “balance of charges,” overstating the rental amount due. (Dem., at p. 4.)

Plaintiff contends that the amount stated in the three-day notice represents a permissible estimate of all charges due under the lease. (Opp’n, at pp. 10-11.)

Pursuant to Code of Civil Procedure section 1161, a three-day notice must state “the amount that is due.” In the case of a commercial lease, section 1161.1 contemplates that the amount stated in the notice may be clearly identified as an estimate of what is owing. (Code Civ. Proc. § 1161.1, subd. (a).) Courts have interpreted the language of section 1161 to broadly encompass any sums due under the lease. (Bevill v. Zoura (1994) 27 Cal.App.4th 694, 697, fn. 1, citing Canal-Randolph Anaheim, Inc. v. Wilkoski (1978) 78 Cal.App.3d 477, 492.)

Here, the three-day notice expressly states that the amounts listed are an estimate of the total amount owing. (Compl., Exh. 2.) Defendant acknowledges that an estimate is statutorily permissible.

As to the nature of the charges itemized in the notice, the underlying lease, which is extended by the Lease Transfer Agreement, requires that the tenant pay any insurance cost increases to the landlord resulting from the tenant's occupancy, and late charges for processing untimely rent. (Compl., Exh. 1.) The three-day notice itemizes a past-due

balance on Defendant's account as of February 1, 2026, past-due rents owing from February through April 2026, and unpaid insurance premiums for four years. (Id., Exh. 2.) These charges are all contemplated by the lease, and Defendant fails to demonstrate that any particular charge is incorrect or does not represent an "amount that is due" under the lease.

The Court accordingly finds that the three-day notice is not invalidated by inclusion in the amount due of charges for insurance premiums and late fees.

(3)

The Complaint Does Not Fail for Uncertainty.

Lastly, Defendant contends that the Complaint is fatally uncertain because it notes a different address for the leased premises than what is indicated in the lease agreement and the three-day notice. (Dem., at p. 4.)

Plaintiff asserts that the leased premises are identified with sufficient certainty such that Defendant is adequately apprised of the premises at issue in these proceedings. (Opp'n, at p. 9.) The Court agrees. The original lease and the subsequent Lease Transfer Agreement, both attached to the Complaint, clearly identify the leased premises as 24247 Railroad Avenue, Santa Clarita, CA 91321, leaving Defendant in no doubt about which property is the subject of this action.

Based on the foregoing, the Demurrer is OVERRULED.

CONCLUSION

The Court OVERRULES Defendant's Demurrer to the Complaint. Defendant is ordered to serve and file an answer within ten days.

Moving party to give notice.